



CHAPTER lxiv

An Act to make further provision with regard to the letting of houses in the borough of Bedford and for other purposes. [5th July 1956.]

WHEREAS—

(1) The borough of Bedford (in this Act called “the borough”) in the county of Bedford is a municipal borough under the government of the mayor aldermen and burgesses of the borough (in this Act called “the Corporation”):

(2) During recent years numbers of persons of Italian and other foreign nationalities have been permitted to find employment in or near the borough and the number of such persons is increasing:

(3) Many of these persons and their families are living in accommodation in the borough:

(4) It is expedient that additional protection be afforded to such persons with respect to the letting to them of living accommodation in the borough:

(5) It is expedient that the other provisions contained in this Act be enacted:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

(7) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and

Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Bedford Corporation Act 1956.

Interpretation.

2. In this Act unless the context otherwise requires—

“alien” has the meaning assigned to that expression by the British Nationality Act 1948;

“the borough” means the borough of Bedford;

“the Corporation” means the mayor aldermen and burgesses of the borough;

“house” has the meaning assigned to that expression by section 343 of the Public Health Act 1936;

“the Minister” means the Minister of Housing and Local Government;

“owner” means the person for the time being receiving the rent payable in pursuance of the contract referred to in subsection (1) of section 3 of this Act whether on his own account or as agent or trustee for any other person;

“services” includes attendance the provision of heating or lighting the supply of hot water and any other privilege or facility connected with the occupancy of a house or part of a house not being a privilege or facility requisite for the purposes of access cold water supply or sanitary accommodation.

Provision of rent books.

3.—(1) During the period of five years from the passing of this Act it shall be the duty of the owner of every house or part of a house situate in the borough which is let in lodgings or occupied by members of more than one family to provide a rent book or other similar document for each person who occupies any part of such house under a contract granting him the right to occupy such part of such house in consideration of a rent which includes payment for the use of furniture or for services and who is an alien and such rent book or other similar document shall be provided in respect of each part of such house as is occupied under such a contract as aforesaid including any part thereof which is shared with another person.

(2) A rent book or other similar document provided in pursuance of subsection (1) of this section shall contain the following information:—

(a) the address of the house or part of a house;

(b) the name and address of the owner;

(c) a description of the accommodation for which the rent is paid;

(d) the name of the person occupying the accommodation;

- (e) details of any services provided by the owner ;
- (f) the rent and the period in respect of which such rent is payable and the day on which it is due ;
- (g) the amount of each payment made in pursuance of the contract referred to in subsection (1) of this section and the date upon which it was paid.

(3) If the owner of a house or part of a house to which this Act applies fails to comply with any of the requirements contained in the foregoing provisions of this section he shall in respect of each week in which the failure occurs or continues be liable to a penalty not exceeding ten pounds.

(4) The period of five years referred to in subsection (1) of this section may be extended by an order made by the Minister on an application of the Corporation and in that event this section shall have effect as if such extended period as may be specified in such order were substituted for the said period of five years but no order further extending the said period shall be made by the Minister.

(5) If the Minister shall make an order under subsection (4) of this section the Corporation shall as soon as may be after the making of the order publish in a local newspaper circulating in the borough a notice stating the effect of the order.

4.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act and they shall repay any sum so borrowed within such period as the Corporation may determine not exceeding five years from the date of borrowing. Power to borrow.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed by this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

5. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation. Restriction on right to prosecute.

6. Sections 288 296 304 and 328 of the Public Health Act 1936 shall have effect as if references therein to that Act included a reference to this Act. Application of general provisions of Act of 1936.

Costs of Act.

7. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

Table of Statutes referred to in this Act

Short title			Session and chapter
Local Government Act 1933	...	...	23 & 24 Geo. 5 c. 51.
Public Health Act 1936	...	...	26 Geo. 5 & 1 Edw. 8 c. 49.
British Nationality Act 1948	...	...	11 & 12 Geo. 6 c. 56.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4d. net

PRINTED IN GREAT BRITAIN

(37612)